WAR OVER THE WOUNDED

With the defence ministry coming out with stricter rules for awarding disability benefits and frequently challenging armed forces tribunal orders, veterans are up in arms and want relief from the government

By Pradip R. Sagar

Given the hazardous nature of the job where disability and death are always nigh, the ministry of defence (MoD) has had a generous policy for compensating Indian military personnel who put their life on the line. This includes higher pensions for those who are disabled due to service-related injuries or illnesses or during combat in war. The compensatory benefits range from a full 100 per cent more of their normal pensions to lower percentages after medical officers assess the degree of disability. If not satisfied with the award, ex-servicemen have the option of moving the Armed Forces Tribunal (AFT) for redress. Normally, the AFT has been pro-servicemen in its judgments. However, the MoD has increasingly resorted to legal battles against military pensioners, challenging disability benefits where the AFT delivered a favourable verdict to servicemen. Currently, around 16,000 such cases regarding disability claims are pending in various courts across the country. Most of these relate to personnel of the Indian Army.

Despite criticism of the MoD by various high courts and the Supreme Court for filing such cases and even after a special commission of the central government directed the ministry to stop the practice, the litigations continue unabated. In its defence, the MoD alleges that a high number of officers are faking disability to take advantage of the generous pension benefits, leading to appeals in higher courts. To manage the spiralling costs of disability pensions, in September 2023, the MoD even revised the disability benefit rules, applicable to those who retire after September 21, 2023. Chief of Defence Staff Gen. Anil Chauhan had stated that the rules were revised to protect genuine soldiers' requirements. "It was to protect the genuine interest of the personnel who acquired disability during service while preventing the exploitation of its liberal provisions from misuse," he explained.

The MoD's concerns may be genuine, but many army veterans' organisations feel that hundreds of lower-ranked personnel are getting a raw deal. For instance, Junior Warrant Officer Harsh Singh underwent partial kidney removal due to organ malfunction, but military authorities declared his condition "neither attributable to nor aggravated by service" (NANA) and assessed his disability at just 11-14 per cent. By regulation, such cases merit a 50 per cent disability tag. When the AFT granted him relief, the MoD appealed the case in the Punjab & Haryana High Court, which recently dismissed the ministry's petition. Similarly, Kanta Devi, the widow of a soldier from a remote Himachal Pradesh village, faced an uphill battle for her rights. Her husband, diagnosed with cancer during his service, underwent chemotherapy but continued his duties until his release. Despite his clear service record, his disability pension was rejected on similar grounds. After his death, Devi approached the AFT, which granted her a special family pension (60 per cent of last drawn salary). The MoD appealed the decision in the Supreme Court, which ultimately upheld her pension benefits.